

TENTATIVE RULING FOR August 19, 2026

Department S22 — JUDGE JANET FRANGIE

(Sitting on Assignment)

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2323025

D.H. et al v. SHERIFF-CORONER SHANNON D. DICUS

TENTATIVE RULING

Defendant's Demurrer to Plaintiffs' Complaint:

Request for Judicial Notice:

The Court grants Defendant's request for judicial notice of Exhibits A through L attached to the Request pursuant to California Evidence Code, §452, subd. (d).

Demurrer:

The Demurrer is overruled. The decision is determined by the California Supreme Court's ruling in *Doe v. Marysville Joint Unified School District* (2026) 20 Cal.5th 68 which held that Rule 41(a)(1)(B), which is a rule of federal civil procedure, does not bar the plaintiff from filing the same claims in state court. Defendant is directed to file an Answer on or before September 18, 2026.

A Trial Setting Conference is set for, **November 18, 2026**, at 8:30 a.m. in Department S22. Unless waived by the parties in open court, Plaintiff is directed to give notice of ruling.

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CIVSB2317424

JOSE DE JESUS CHIQUITO DIAZ DE LEON v. PHILCAL, INC., et al

TENTATIVE RULING

Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement:

The unopposed motion is granted. The Court finds the settlement fair, reasonable and adequate and in the best interest of the class members. The Court makes all the findings recited in the proposed Judgment and Judgment is entered accordingly.

The Court certifies the following Class: all persons employed by Defendant in California and classified as hourly-paid or non-exempt employees who worked for Defendant during the Class period from July 28, 2019, to June 30, 2024, with each such person who does not timely